



File No.: EXP202208489

RESOLUTION OF RECONSIDERATION APPEAL

Examined the reconsideration appeal filed by the entity ROMESTONE, S.L. (*hereinafter, the appellant) against the resolution issued by the Director of the Spanish Agency for Data Protection dated November 20, 2023, and based on the following FACTS

FIRST: On November 20, 2023, a resolution was issued by the Director of the Spanish Agency for Data Protection in file EXP202208489, by virtue of which a fine of €6000 (Six Thousand euros) was imposed on ROMESTONE, S.L. with NIF B05443155, for a violation of Article 6.1 of the GDPR, classified under Article 83.5 of the GDPR.

This resolution, which was notified to the appellant on November 21, 2023, was issued following the processing of the corresponding sanctioning procedure, in accordance with the provisions of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (LOPDGDD), and subsidiarily under Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), regarding the processing of sanctioning procedures.

SECOND: As proven facts of the aforementioned sanctioning procedure, PS/00496/2022, the following was recorded:

First. The facts arise from the complaint dated 01/07/22, through which the following was conveyed:

“resides in a rental arrangement of a room, in an apartment located at Calle ***ADDRESS.1, along with other tenants, and that the entity being complained against, which is the Agency responsible for managing the rental, has installed a video surveillance camera in the common areas of the dwelling, without prior consent from the tenants, affecting their right to privacy”

“...it is stated that she has not authorized the installation, having been informed by the landlord via email of the measure adopted (...) That access to the dwelling was gained taking advantage of the absence of the residents (folio No. 1).

Second. It is evidenced that the main responsible entity for the system is RomeStone S.L. with NIF B05443155.

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Third. It is evidenced that there is a video surveillance camera system, the presence of which is not denied by the respondent, to monitor the access area to the property (the hall).

Fourth. It is evidenced that the camera(s) of the installed system are operational, collecting personal data of the residents of the property during their entries/exits from the property in question.

Fifth. It is evidenced that there is an information sign indicating it is a “video-surveillance area” with the details of the Company as well as an email address

***EMAIL.1.

THIRD: The appellant submitted on December 21, 2023, to this Spanish Agency for Data Protection, a reconsideration appeal, basing it fundamentally on the following points:

“In the second place, regarding the concept of constitutional domicile, we bring to attention Judgment 10/2002, of January 17, 2002. - Official State Bulletin, of 02-08-2002, in which the judicial body states that, although it is true that art. 18.2 CE does not provide an express concept or definition of domicile and it has not been exhaustively

developed by the Constitutional Court, however, the jurisprudence of said Court provides more than sufficient guidelines to reach a conclusion regarding the problem posed. From the constitutional doctrine collected in STC 22/1984, of February 17, whose legal foundations 2 and 5 are partially reproduced, it results, in its opinion, that the notion of domicile protected by art. 18.2 CE does not refer exclusively to the place of habitual residence, to the permanent and definitive establishment of persons, but to any enclosed place in which a private activity is carried out in one way or another, with the intention of excluding third parties; ultimately protecting any physical space in which the realm of privacy of individuals unfolds, regardless of whether it is habitual, permanent, or stable, or on the contrary, transitory, temporary, or accidental. It is undeniable, consequently, that the characteristics outlined of the constitutional notion of domicile perfectly suit hotel rooms and other hospitality accommodations.

Consequently, we understand this concept to be extensible to the accommodation arrangement that constitutes the object of the commercial entity ROMESTONE S.L., since DL 50/2020, of December 9, on urgent measures to promote the development of official protection housing and new forms of rental accommodation defines coliving as follows: "shared accommodations or accommodations with complementary common spaces." This activity, as it is considered for tax purposes as a lease with "services typical of the hotel industry," we understand that the hotel establishment regime applies to the commercial entity ROMESTONE S.L., so there can be no sanction of any kind since it is well known that in hotels, hostels, guesthouses, etc., it is common and habitual, and by legal extension, that in the access areas to the rooms there are image recording devices. OF THE AUDIENCE PROCEDURE. Disagreeing with the corresponding as this party cannot share what is asserted in its resolution by the sanctioning body.

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because it does not correspond to reality since, in the FOURTH ALLEGATION of the previous written submissions presented at the time, we already stated the following: "In any case, we request the application of Article 82 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, as the inability to consult the documentation provided by the claimant causes defenselessness" therefore it is not true that this party has not requested said procedure (...).

OF EXPRESS CONSENT. Article 6.1 of the GDPR, regarding the lawfulness of processing, states, among other aspects, that processing shall only be lawful if at least one of the following conditions is met:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) the processing is necessary for the performance of a contract to which the data subject is a party or for the implementation at their request of pre-contractual measures; In this regard, since all assignees of the rooms, when renting them, sign a housing assignment contract in which the existence of said camera at the entrance of the dwelling is noted in order to guarantee the safety of the goods and the persons residing therein, they give their consent expressly, as we reproduce below, and for which complete and total reading, if the quality of the image does not allow it, can be consulted in DOCUMENT NUMBER X at XX previously provided and which is included in the file where the clause appears in all signed lease contracts.

ON THE LOCATION OF THE CAMERA. As already anticipated in the allegations to previous requests, we consider it necessary to bring to attention again, given the nature of the present appeal, that the company ROMESTONE SL is engaged in the rental of rooms in dwellings equipped for that purpose, so the only existing camera in the dwelling is for surveillance and is located at the entrance of the same - hallway - in such a way that the images are stored for 48 hours and are deleted, being replaced by new images in a loop so that access to such data is only made in cases of theft, robbery, assaults,

sexual harassment, etc. reported by the victims or when there are conflicts involving the intervention of the State Security Forces, etc. Furthermore, its location is at the entrance of the dwelling - hall - without any case having installed any video surveillance service in other areas such as rooms, bathrooms, or even common areas such as the living room or dining room.

In this sense, we want to emphasize that the camera's field of view focuses exclusively on the entrance door, it does not have a 360-degree view and, by extension, there are no recorded or stored images other than those from the exclusive focus angle of the door.

Dissatisfied with the correlation. Closely linked to the above, it is also important to consider that, precisely in application of the autonomy of will provided for in Article 1255 of our Civil Code, the parties have sufficient freedom to freely determine, among other issues and applied to this case, the clauses of a contract that they deem appropriate so that if the parties have agreed...

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In the event that a contract, regardless of its nature, is explicitly established, it is not possible to understand any other consideration, since the starting point for interpretation is the wording of the clause or clauses of the contract, as provided in the first paragraph of Article 1281 of the Civil Code, which states that "if the terms of a contract are clear and leave no doubt about the intention of the contracting parties, the literal meaning of its clauses shall prevail."

For all the above reasons, I REQUEST that this document, along with the accompanying documents, be considered presented, and consequently, that the appeal for reconsideration against the administrative act be accepted, and after the appropriate procedures, that it be upheld, ruling that there is no basis for the proposed sanction."

LEGAL GROUNDS

I

The Director of the Spanish Agency for Data Protection is competent to resolve this appeal, in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP) and Article 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD).

II

Before addressing the substance of the matter, this agency finds it pertinent to make the following clarifications regarding the extensive arguments concerning the concept of . This agency maintains the criterion currently upheld by Jurisprudence: "the space in which the individual lives without submitting to social uses and conventions and where they exercise their most intimate freedom" (e.g., STC 22/1984, STC 69/1999, April 26, among others), making it clear that the domicile as such forms a whole, with no areas less reserved for intimacy, such as the access area to the dwelling.

The Supreme Court, among others in STS 1108/1999, September 6, has stated that "the domicile is the closed place, legitimately occupied, in which private life, individual or family, takes place, even if the occupation is temporary or accidental" (SSTS 24-10-1992, 19-7-1993, and 11-7-1996). This highlights the connection between the concept of domicile and the protection of the individual's spheres of privacy, which leads to broadening the civil or administrative legal concept of residence to construct the concept of domicile from a constitutional perspective, as an instrument for the protection of privacy.

It is not the role of this agency to delineate the constitutional profiles of the concept of domicile, nor to suggest, as the respondent does, that the concept be applied by analogy in "different" cases due to the lack of regulation in this regard concerning certainly novel issues.

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Some of the issues raised involve a conflict between a fundamental right, such as the right to privacy (Article 18 CE), and the need to preserve the security of the property and its inhabitants, which is not a situation of weighing in the event of a conflict between fundamental rights.

Furthermore, the extensive arguments presented by the respondent do not lead to a situation of appropriateness of the measure, given that the core issue, caused by excessive noise in the dwelling, has been resolved with a decibel measurement device, although the presence of the camera does affect fundamental rights such as the right to data protection (e.g., STC 292/2000, of November 30). “And that right to consent to the knowledge and processing, whether computerized or not, of personal data requires as indispensable complements, on the one hand, the ability to know at all times who holds that personal data and to what use they are subjecting it, and, on the other hand, the power to oppose that possession and uses.”

Finally, regarding the lack of required documentation, it should be noted that in the aforementioned Initiation Agreement, all the facts were specified (literal copy of the complaint), emphasizing in the phase that all documentation was available to the respondent should they legally request it.

Along with the complainant's claim, a copy of the contract signed with the company itself was attached in the Documentary Annex, so they have their corresponding copy, which does not differ in their case from that submitted to this agency.

Additionally, a copy of the communication to the referred company and a photograph of the camera in its location are provided, facts that are well known to the respondent and have not been questioned or denied by them.

The Constitutional Court, in Judgment 144/1996, of September 16, states that “in an administrative procedure, what is truly decisive is whether the subject has been able to allege and prove what they deem appropriate regarding the essential aspects of the conflict in which they find themselves.”

Thus, the claim made must be dismissed, given that the respondent has been aware of the facts and the required documentation was in their possession as it pertains to the copy of the contract signed by the parties and the sending of a communication warning of the unexpected presence of an image recording device, which does not alter the attribution of this agency nor affect their right to defense.

III

In this case, we proceed to analyze the document qualified as filed by the company ROMESTONE S.L.

The facts stem from the complaint dated 01/07/22, which was transferred to this agency by the Catalan Data Protection Agency on 14/07/22, concerning the “presence of a device for capturing...

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“images” in the floor where the claimant has a room under a rental agreement.

The defendant has made the appropriate allegations in the corresponding administrative procedure in the exercise of its right to defense, not denying being the main responsible party for the installation of the device in question, stating the following:

“the company ROMESTONE SL is engaged in the leasing of rooms in residences designated for this purpose, so the only camera present in the residence is for surveillance and is located at the entrance (hallway) of the same, in such a way that the images are stored for 48 hours” (folio no. X Written allegations dated 02/09/22).

This agency considered it proven without ambiguity that the defendant has an image capture device and , considering that the described facts imply an infringement of the content of Article 6 of the GDPR.

In Recital number 40 of the GDPR, it is indicated that for processing to be lawful, personal data must be processed on one of the legal bases established in accordance with the law (...).

For its part, Recital number 43 of the GDPR states the following: “(...) Consent is presumed not to have

been freely given when it does not allow for separate authorization of the different operations of personal data processing, despite being appropriate in the specific case, or when the fulfillment of a contract, including the provision of a service, is dependent on consent, even when this is not necessary for such fulfillment.”

Therefore, the “data processing” carried out with the camera(s) installed inside the property must be justifiable under the so-called legal bases, that is, it must be possible to demonstrate the lawfulness of the processing in the list of situations or specific cases in which it is possible to process personal data.

The previously described facts imply an infringement of the content of Article 6 of the GDPR (Regulation 2016/679/EU, April 27).

Article 6 of the GDPR states: Processing shall be lawful only if:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes (...);
- b) the processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
- e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller; (...)

Article 6, section 3 of the LOPDGDD (LO 3/2018) states the following:

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"The execution of the contract may not be conditioned on the affected party consenting to the processing of personal data for purposes unrelated to the maintenance, development, or control of the contractual relationship."

Therefore, the allegations put forward regarding the alleged will expressed by the claimant in the presence of the camera are considered to be incompatible with the legitimizing basis put forth by the defendant company.

It is a confirmed fact that the contract signed by the claimant does not contain any clauses regarding data protection (Annex Doc. evidentiary I Copy of the contract between claimant/defendant Room Rental Agreement dated ***DATE.1).

The main clauses are specified in the following sections in the Annex: Rule 1 Cleaning and maintenance of the dwelling, Rule 2 Security, Rule 3 Use of Appliances, Rule 4 Stay, Decoration, Bedding and Towels, Rule 5 Visits, Guests, Noise and Parties, Rule 6 No Smoking and No Pets, Rule 7 Clothes Drying, Rule 8 Light, Water, Heating and Gas, Rule 9 Food and Personal Belongings of Other Housemates, Rule 10 Loss or Theft of Keys, Rule 11 Internet, Rule 12 Children, Other clauses Termination of Stay and Relationship with Housemates, Relationship with the landlord's tenants.

The described facts are consistent with the account provided by the claimant in various instances, who from the very beginning emphasizes the "absence of clauses specifying the use of cameras" (e.g., Initial Written Documentary Diligences number ***DILIGENCES.1 in appearance before the General Directorate of Police (Interior Department).

The criterion of this body regarding the presence of such devices inside the rental properties is clear, considering that their presence, aside from the implications it may have on privacy, constitutes a disproportionate to the purpose of the system, whose presence cannot be imposed through contractual clauses like those provided by the defendant.

Thus, the claim extensively put forward by the defendant is not considered compliant with the current regulations on data protection, as it is seen as a mechanism for controlling the entries/exits of the residents of the property, with less harmful measures existing for the intended protection of the same, also lacking a legitimizing basis to support the processing carried out.

The intended security of the access area of the property can be achieved with less harmful measures, such as the installation of a security door, as well as with the corresponding standard clauses in the matter against hypothetical misconduct by tenants, without the brief explanations provided by the defendant demonstrating a legitimate interest in the presence of devices like the one installed in the

only access area to the property being considered lawful.

The device in question performs a of all those who enter/exit the mentioned property, with the images (data) being subject to storage by the defendant.

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The responding party argues that there exists a clause numbered as TENTH; however, this clause is not present in the contract signed and submitted by the claimant in the terms they outline. It is the obligation of the data controller to provide all necessary documentation that proves the consent freely given by the data subject.

Therefore, the responding party, beyond the arguments mentioned, does not contradict the claimant's version of the facts, as they cannot reliably prove the copy of the document with the legally compliant information clause, which does not allow for coercion of the will of the data subject in the terms outlined, properly signed and dated.

Finally, it is emphasized that not every clause imposed in a contractual document can be considered legitimate in its content, as this would imply legitimizing per se , , or clauses that establish conditions in contracts contrary to good faith, to the detriment of fundamental rights or create a clear situation of imbalance between the rights and obligations of the parties.

Regarding the statements made by the appellant, which basically reiterate the allegations already presented throughout the sanctioning procedure, it should be noted that all of them have already been analyzed and dismissed appropriately in the contested Resolution, referring to what has been stated for reasons of procedural economy.

IV

Consequently, in the present appeal for reconsideration, the appellant has not provided new facts or legal arguments that would allow for a reconsideration of the validity of the contested resolution, confirming the sanction and measure imposed in the referred terms.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the appeal for reconsideration filed by the entity ROMESTONE, S.L. against the resolution of this Spanish Agency for Data Protection issued on November 20, 2023, in file EXP202208489.

SECOND: TO NOTIFY this resolution to ROMESTONE, S.L.

THIRD: To warn the sanctioned party that the imposed sanction must be made effective once this resolution is notified, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, within the voluntary payment period indicated in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by depositing it into the restricted account No. ES00 0000 0000 0000 0000 0000,

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opened in the name of the Spanish Agency for Data Protection at Banco CAIXA-BANK, S.A., or otherwise, collection will proceed in the executive period.

If the date of notification falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second month following or the next business day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public

once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) LPACAP, the firm resolution in the administrative process may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by writing to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned LPACAP. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension would be considered terminated.

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